



County Commissioners Meeting December 4th 2023

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=ShVdCPEnQBo
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Delaware County Commissioner Meeting Report

Meeting Date: December 4, 2023

Report Publication Date: October 24, 2023

Prepared By: Civic Analyst

Meeting Identification & Attendance

- **Call to Order & Spoken Details:** Presiding officer called the Delaware County Commissioner meeting to order on Monday, December 4, 2023, at 9:01 AM.
- **Attendance:**
 - **Present:** Commissioners explicitly noted as present during roll call or discussions include Mr. Henry, Mr. King, Mr. Reagan, Mr. Brook, and Ms. Smith.
 - **Absent:** None noted in the roll call transcript.
 - **Presiding Officer:** Noted as leading proceedings, with specific contributions from Commissioner Henry and legal counsel John Brook.

Preliminary & Procedural Business

- **Ceremonial Openings:** The meeting opened with the Pledge of Allegiance led by Ed [00:01:49](#).

- **Approval of Minutes:** The minutes of the November 20, 2023 commissioner meeting were approved by roll call vote (Mr. King: Yes, Mr. Reagan: Yes, Mr. Henry: Yes) [00:02:44](#). Commissioners expressed appreciation for the minute-takers, Denise and Mr. Carol.
 - **Tabled Business:** Tabled business was recommended to remain on the table [00:02:35](#).
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Substantive Business & Board Action

- [00:03:23](#) **Presentation: East Central Indiana Solid Waste District (ECISWD)**
 - **Sponsor / Presenter:** Susan Ioriono (Assistant Director) and Kyle Shrink (Director).
 - **Deliberation Summary:** Presented overview of the regional multicounty district covering Madison, Grant, and Delaware counties. Discussed recycling numbers, special waste programs, and a call for up to five volunteers per county for the 2024 Citizens Advisory Board (meeting twice a year in May and October). Highlighted drop-off availability at East Central Recycling (700 East Centennial) for residents to dispose of special waste like paint and tires.
 - **Action & Disposition:** Informational presentation; no board vote required.
- [00:12:02](#) **Contract: LexisNexis Law Books Contract**
 - **Sponsor / Presenter:** Emily Anderson, Court Administrator.
 - **Deliberation Summary:** Three-year contract (backdated to December 1st through December 2025) for civil and criminal jury instructions required by judges. Paid through existing court budgets.
 - **Action & Disposition:** Approved by roll call vote (Mr. King: Yes, Mr. Reagan: Yes, Mr. Henry: Yes) [00:12:53](#).
- [00:12:59](#) **Agreement: New World Access and Software**
 - **Sponsor / Presenter:** Jim Fluke, IT Department.
 - **Deliberation Summary:** Annual agreement to provide additional New World software access and mobile data terminal (MDT) hooks for small town agencies (Helen Schools SRO, Eaton SRO, and Gaston PD). Establishes a \$200 annual cost per unit billed starting January 1st.
 - **Action & Disposition:** Approved by roll call vote (Mr. King: Yes, Mr. Reagan: Yes, Mr. Henry: Yes) [00:15:15](#).
- [00:15:24](#) **Agreement: Legal Services for Delaware County Election Board**
 - **Sponsor / Presenter:** Rick Spangler, Delaware County Clerk.
 - **Deliberation Summary:** Continuation agreement for Donald McLellan to represent the election board for 2024, approved unanimously by the election board.
 - **Action & Disposition:** Approved by roll call vote (Mr. King: Yes, Mr. Reagan: Yes, Mr. Henry: Yes) [00:16:04](#).
- [00:16:11](#) **Agreement: United Consulting Stormwater Project**
 - **Sponsor / Presenter:** John (Legal Counsel / Staff).

- **Deliberation Summary:** Engineering agreement for a stormwater project on the outskirts of Albany, south of the former Perch Farm running north from Route 67, addressing longstanding drainage issues (noted around a \$433,000 scope).
 - **Action & Disposition:** Approved by roll call vote (Mr. King: Yes, Mr. Reagan: Yes, Mr. Henry: Yes) [00:16:58](#).
- **00:17:07 Employment Agreement: 911 Director**
 - **Sponsor / Presenter:** John (Legal Counsel / Staff).
 - **Deliberation Summary:** Five-year employment agreement for 911 Director Fred Cummings. Praised for professionalizing the department, updating equipment/procedures, and establishing a model operation.
 - **Action & Disposition:** Approved by roll call vote (Mr. King: Yes, Mr. Reagan: Yes, Mr. Henry: Yes) [00:18:05](#).
- **00:18:27 Resolution No. 2023-27: Isaiah 117 House Property Transfer**
 - **Sponsor / Presenter:** County Staff / Legal Counsel.
 - **Deliberation Summary:** Resolution to initiate the process for transferring county-owned property at the southwest corner of Cornbread and Tillison roads to the Isaiah 117 House (a non-profit tax-exempt entity) to construct a facility. A public hearing will be held at the next meeting.
 - **Action & Disposition:** Approved by roll call vote (Mr. King: Yes, Mr. Reagan: Yes, Mr. Henry: Yes) [00:19:19](#).
- **00:19:34 Department Item: 2024 Commissioners Meeting Calendar & Times**
 - **Sponsor / Presenter:** Sarah (Staff).
 - **Deliberation Summary:** Discussion regarding meeting schedules. A motion was made to keep meeting times at 9:00 AM and accept the presented dates.
 - **Action & Disposition:** Approved by roll call vote (Mr. King: Yes, Mr. Reagan: No, Mr. Henry: Yes) [00:20:19](#).
- **00:30:32 Highway Department: Ground Extension at County Highway**
 - **Sponsor / Presenter:** Tommy Hubert, Delaware County Highway Department.
 - **Deliberation Summary:** Request to extend highway storage ground by 300 feet north, east, and west (forming a 600x300 foot squared-off area) to expand storage for stones, improve stormwater containment, and manage rain gardens/ponds. A high-tensile wire fence will enclose the area.
 - **Action & Disposition:** Approved by roll call vote (Mr. King: Yes, Mr. Reagan: Yes, Mr. Henry: Yes) [00:31:00](#).

Open Public Comment / Citizen Forum

(General floor comments from residents and officials near the conclusion of the meeting)

- **00:34:45 Cheryl Dawson:** Spoke in opposition to aspects of the solar ordinance, specifically raising concerns regarding poor drainage history, shared mutual county tiles, and runoff impacts near Wheeling Avenue and State Road 28.
- **00:38:27 John Taylor:** Spoke as a member of the solar advisory group. Expressed regret over not speaking prior to recent votes and advocated for a negotiable setback from residences (e.g., 500 feet from residences rather than property lines) to protect property values.
- **00:40:20 Robert Kester:** Spoke in support of utility-scale solar as a form of “harvesting the sun” that is compatible with farming. Argued that setbacks should be measured from dwellings (line of sight) rather than property lines to avoid restricting agricultural land use.
- **00:43:35 Linda Hansen:** Spoke on behalf of the League of Women Voters of Muncie-Delaware County, urging support for utility-scale solar and voicing concern that a 500-foot property line setback would stall solar investments and cost the county revenue.
- **00:46:38 Sue Arrington:** State representative and local resident; spoke against the 500-foot property line setback passed by the plan commission without sufficient economic modeling, noting it exceeds state default recommendations (250 feet from dwellings) and could result in massive amounts of idle land.
- **00:55:01 Nate Howard:** Muncie Land Bank Director; thanked Commissioners King and Bookout for attending the Vacant Property Leadership Institute in Austin, Texas, and invited the community to a First Friday housing event on December 8th at the former McCarty Lumber site.

Administrative Updates & Adjournment

- **Staff / Board Announcements:**
 - Human Resources (Pam/Jenice) reminded staff that open enrollment runs through December 12th **00:20:32**.
 - Coroner Gavin Green provided updates on standardizing autopsy/toxicology report fees and updating deputy coroner call-out pay ordinances **00:21:18**.
 - Fairboard representative Dan White presented updated rental rate structures for the fairgrounds buildings to resolve bathroom/kitchen access conflicts **00:26:06**.
 - Claims were presented, including a fall draw advance of \$24,634,351.19 out of total claims amounting to \$26,384,950.43, alongside ARP claims of \$16,669.24 **00:33:40**.
 - **Adjournment:** The meeting was recessed/adjourned following a motion and roll call vote (Mr. King: Yes, Mr. Reagan: Yes, Mr. Henry: Yes) **00:04:41** (note: transcript concludes at **01:00:53**).
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